

#	Case Name	Tentative
		sanctioned or reported to the State Bar for presenting AI hallucinations or otherwise failing to confirm the representations counsel makes to the court. If the court decides to issue an order to show cause, a separate hearing will be set. The case management conference is continued to January 25, 2027 at 9:00 a.m. in Department C28. Moving parties shall give notice of this ruling.
56.	Natfund II LLC v. Aryabhata Group LLC 2025-01521675	Third Party Intervenor Pacific High Yield Fund I, LLC's unopposed Motion for Leave to Intervene is GRANTED. "At any time after notice of pendency of action has been recorded, any party, or any nonparty with an interest in the real property affected thereby, may apply to the court in which the action is pending to expunge the notice. However, a person who is not a party to the action shall obtain leave to intervene from the court at or before the time the party brings the motion to expunge the notice. Evidence or declarations may be filed with the motion to expunge the notice." (Code Civ. Proc., § 405.30.) "A nonparty shall petition the court for leave to intervene by noticed motion or ex parte application. The petition shall include a copy of the proposed complaint in intervention or answer in intervention and set forth the grounds upon which intervention rests." (Code Civ. Proc. § 387(c).) Intervenor is the current owner of the Property at issue and disputes the validity of the lis pendens. As such, Intervenor has a sufficient interest in the litigation to allow intervention. A property owner whose property has been mistakenly encumbered by a lis pendens clearly has such an interest, as the lis pendens "acts as a cloud against the property, effectively preventing sale or encumbrance until the litigation is resolved or the lis pendens is expunged." (<i>Amalgamated Bank v. Superior Court</i> (2007) 149 Cal.App.4th 1003.) The motion is unopposed. Although Intervenor has not attached a copy of the proposed answer, the court GRANTS the motion and ORDERS Intervenor to separately file the answer in intervention within ten days. Intervenor shall give notice in accordance with Code Civ. Proc. § 387, subd. (e).

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57.	Flores v. Hyundai Motor America 2023-01343056	Plaintiff Sidney Flores' motion for attorney fees is DENIED. The moving papers do not identify any amount of fees sought, nor provide any evidence as to the time incurred, or how any claimed time incurred was reasonable or necessary. (<i>Serrano v. Priest</i> (1977) 20 Cal.3d 25, 49 [party seeking attorney fees has the burden of proof as to the reasonableness and necessity of same]; <i>Christian Research Institute v. Alnor</i> (2008) 165 Cal.App.4th 1315, 1320 [party seeking attorney fees "bear[s] the burden of establishing entitlement to an award and <u>documenting</u> the appropriate hours expended and hourly rates ... [t]he <u>evidence</u> should allow the court to consider whether the case was overstaffed, how much time the attorneys spent on particular claims, and whether the hours were reasonably expended;" emphasis added, internal citation omitted].) The court observes that moving party's counsel has filed two previous fee motions, which also suffered from evidentiary deficiencies. (ROA 56, 58, 59 [first fee motion, denied without prejudice 11-10-26]; ROA 64, 66 [second fee motion, withdrawn by moving party].) The court declines to consider plaintiff's "Notice of Errata" (ROA 98) addressing this issue, which was not filed until 8-3-26, after defendant had filed an opposition. (<i>Bozzi v. Nordstrom, Inc.</i> (2010) 186 Cal.App.4th 755, 765 [court's discretion to refuse to consider late-filed papers]; <i>Rancho Mirage Country Club Homeowners Assoc. v. Hazelbaker</i> (2016) 2 Cal.App.5th 252, 262 [same]; see also <i>Jay v. Mahaffey</i> (2013) 218 Cal.App.4th 1522, 1537-1538 [ordinarily, new evidence presented for the first time on Reply is not considered, unless the opposing party has notice and an opportunity to respond].) Defendant shall give notice of this ruling.
58.	Martinez v. American Honda Motor Co. Inc. 2024-01419984	Plaintiff Eudardo Martinez' Motion for Attorney Fees is GRANTED. Defendant argues that Plaintiff's motion is not timely filed, pursuant to Cal. Rules of Court, Rule 3.1702, subd. (b)(1). Defendant argues that at the latest, Plaintiff had until 5/13/26 to file this motion, consisting of 180 days from the entry of the dismissal of this action on 11/14/25. The court does not have to reach that issue, as the court finds good cause to extend any time to file under Rules of Court, Rule 3.1702(d). ("For good cause, the trial judge may extend the time for filing a motion for attorney's fees in the absence